**TOWN OF MOUNT PLEASANT, SOUTH CAROLINA**
**BOARD OF ZONING APPEALS**
**SEPTEMBER 25, 2017**
**MINUTES**

Present: Mason Smith, Chair, Barry Wolff, Joseph Belton, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden
Staff: Michael Robertson, Lynnette Lynes

Mr. Smith called the meeting to order at 6:00 pm and reviewed the procedure with the public. He administered the oath to those speaking.

**1. Approval of Minutes**

This item was deferred.

**2. Public Comment & General Correspondence**

There being no comments, Mr. Smith continued with the agenda.

**3. Business Staff Report**

**A. V-27-17, 130 Mill Street, 517-15-00-018, Request for relief from the strict standards of §156.325(D) Setbacks to allow continued encroachment of the building within the setback as well as permit the continued encroachment of exterior stairwells located within the setback area.**

Mr. Smith stated that staff has indicated that additional variances would be required and that a deferral would be appropriate.

*Mr. Wolff moved for deferral. Mr. Cowden seconded the motion. All in favor.*

**B. S-6-17, 1000 Warrior Way, Wando High School, 554-00-00-097, Request for Special Exception in accordance with §156.326 (C)(3)(g) to allow fire access driveway through undisturbed bufferyard to Darrell Creek Trail.**

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Michael Cain, HGB, and Mr. Richard Bailey, reviewed the request with the Board.

There being no comments, Mr. Smith closed public comment.

▶ *Mr. Wolff moved for approval based on the findings included in the application and staff report. Mr. Belton seconded the motion. All in favor.*

**C. V-28-17, 1000 Warrior Way, Wando High School, 554-00-00-097, Request for relief from the strict standards of §156.102 Height and Size of Buildings and/or Structures to allow a height of 50 feet for the press box on the proposed football stadium. The property is zoned R-1 which limits height to 35 feet.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Bailey and Mr. Cain reviewed the request with the Board.

Mr. Wolff asked if there would be exterior lighting. Mr. Bailey answered in the affirmative. Mr. Wolff asked if the press box would be lower than the lighting. Mr. Bailey answered in the affirmative.

There being no comments, Mr. Smith closed public comment.

▶ *Mr. Wolff moved for approval based on findings that the structure is needed for utilization of a stadium and based on information included in the staff report and application. Mr. Cowden seconded the motion. All in favor.*

**D. V-29-17, 1117 Hwy 41N, 580-00-00-060, Request for relief from the strict standards of §156.108 (A)(2) which requires a minimum 150 foot separation between curb cuts.**

**E. V-30-17, 1154 Gregorie Ferry, 580-00-00-022, Request for relief from the strict standards of §156.108 (A)(2) which requires a minimum 150 foot separation between curb cuts.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Smith asked for clarification on the location of the accesses. Mr. Robertson showed the location of the accesses on the map for the Board.

Mr. Wood asked the uses of the building. Mr. Robertson answered that one would be an indoor storage facility and the other would have several spaces with the main use being Aiden Fabric with a few smaller spaces that could be leased to other tenants.

Mr. Cowden asked the location of the Sherwin Williams store. Mr. Robertson answered that it is located behind these two parcels.

Ms. Amie Hunt, Earthsource Engineering, reviewed the request with the Board. She stated that SCDOT standards allow for a 75 foot drive separation on secondary roads with a posted speed limit of 30 mph and less than 2,000 trips.

Mr. Wood asked about access to the property from Hwy 41. Ms. Hunt answered that only a right-in/right-out is allowed from Hwy 41.

Mr. Smith suggested that traffic could access Gregorie Ferry Road from Hwy 41 to get access to US17.

Mr. Wolff asked if the access could be moved and bridge over the pond. Ms. Hunt answered that she was not sure it could be accommodated. Mr. Wolff suggested that it could increase the amount of parking as well. Ms. Hunt answered that she was not sure that it would provide additional parking. Mr. Robertson noted that there is a tree in that location. Ms. Hunt stated that it is not a historic tree. She stated that the option would need to be investigated.

Mr. Wood asked the reason for the drive separation requirements. Mr. Robertson answered that there are different requirements between the Town, county, and state.

Mr. Paul Peeples, Seamon, Whiteside, and Associates, stated that he met with the Town and county regarding this issue. He stated that during that meeting, the county indicated that they would abide by the Town's requirements.

Mr. Wood asked if the reason for the separation is to allow safe access. Mr. Robertson answered in the affirmative.

Mr. Smith suggested that when possible, there should be shared access.

Mr. Robertson asked if a signal is proposed on Gregorie Ferry Road. Mr. Peeples answered in the affirmative.

Mr. Cowden asked if a culvert could be installed to resolve the issue and then the access could be moved. Mr. Robertson answered that the applicant has indicated that this would need to be reviewed to determine if it would meet the engineering requirements.

Mr. Smith asked for the applicant for V-30-17 to review their request.

Mr. Peeples reviewed the request with the Board. He distributed a site plan for the Board to review. He stated that it was proposed to move the shared property line in order to have a shared access easement. He stated that the property owners were not able to come to an agreement; therefore, separate accesses were designed.

Mr. Wood asked the proposed use. Mr. Peeples answered that it would be an indoor self-storage unit. Mr. Obie Orton, owner, concurred that it would be a self-storage facility and there was concern with box trucks sharing access with vehicle traffic and one of the reasons the shared access could not be agreed upon.

Mr. Wolff asked if the building is one large building. Mr. Peeples answered in the affirmative. Mr. Wolff asked how many parking spaces are required. Mr. Peeples answered that the parking shown meets the Town's requirements.

Mr. Smith asked how many parking spaces are required. Mr. Peeples answered that there are six spaces required.

Mr. Cowden asked if the access could be moved. Mr. Peeples answered that the proposed access is in the same location as the existing curb cut. He stated that it meets the state requirement of 75 feet.

Mr. Orton stated that they are limited in how far the access can be shifted and still meet the state and county requirements.

Mr. Robertson reviewed correspondence received for both items with the Board (attachment 2).

There being no comments, Mr. Smith closed public comment.

Mr. Smith asked for clarification on if there would be a signal. Mr. Robertson answered that a signal is proposed for the intersection of Hwy 41 and Gregorie Ferry Road.

Mr. Wood asked if the storage facility property could move the access. Mr. Robertson answered that they have the least amount of opportunity to move the access. Mr. Wood asked if Aiden Fabric would then be able to move their access drive. Mr. Robertson answered that this might be possible, but the engineering requirements might prevent the access from being moved.

Mr. Cowden suggested that the hardship is in meeting the Town's requirements.

Mr. Belton asked if shared access was possible. Ms. Hunt answered that the property line was adjusted with the shared access being at that point. She stated that this was not acceptable with the property owners.

Mr. Smith asked about future traffic and if the amount of traffic on Gregorie Ferry Road would increase. Mr. Robertson answered that it is possible that Winnowing Way would be extended to Hwy 41, but this has not been finalized.

Mr. Wolff asked the reason for splitting the property in the current matter. Mr. Peeples answered that the property lines needed to be moved to give clear ownership for the property.

Mr. Wood asked about the DRB comment regarding meeting the separation and not meeting the preferred shared access. Mr. Robertson answered that some justification has been noted at this meeting. Mr. Wood stated that there has not been justification as to why the access could not be moved.

Mr. Belton suggested that the property owner has to determine the access for their property. He suggested that the engineers have tried to determine if the accesses could be moved, shared, etc. He suggested that this is an extraordinary condition and does not apply to other property in the area. He suggested that the topography and configuration of the lots is another unique circumstance.

Mr. Belton asked if a separate motion should be made for each application. Mr. Robertson answered in the affirmative.

- *Mr. Belton moved for approval for request V-29-17, based on the findings that it meets all criteria for relief, the staff report provides justification and based on testimony, there are extraordinary and exceptional circumstances due to location, nature of the adjacent property and environmental conditions, and should be allowed a variance. Mr. Cowden seconded the motion. All in favor.*

- *Mr. Cowden moved for approval of request V-30-17, based on the findings that it meets the criteria and there are extraordinary conditions based on the information in the application and staff report. Mr. Duke seconded the motion. All in favor.*

**4. Approval of Final Orders**

This item was deferred.

There being no further business, the meeting adjourned at 7:32 pm.

Submitted by,
L. Lynes
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